

DOCUMENT F — TEXAS ATTORNEY GENERAL COMPLAINT

Filed against: DNF Associates, LLC | Fortiva Retail Credit / The Bank of Missouri

Portal: texasattorneygeneral.gov

Complainant: Emoefe Dorgu

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COMPLAINT AGAINST:

1. DNF Associates, LLC — 2351 North Forest Road, Getzville, NY 14068
2. Fortiva Retail Credit / The Bank of Missouri — myfortiva.com

TYPE OF COMPLAINT: Texas DTPA Violations / Unlicensed or Improper Debt Collection / Consumer Fraud

NARRATIVE:

I am a Texas resident filing this complaint against DNF Associates, LLC and Fortiva Retail Credit for violations of the Texas Deceptive Trade Practices Act (DTPA), Tex. Bus. & Com. Code §§ 17.46 and 17.50, arising from the collection of a fraudulently originated debt.

THE UNDERLYING FRAUD:

A Fortiva Retail Credit account (ending 9302) was opened in my name as a result of fraudulent misrepresentation by a Vivint sales representative, who verbally promised a 30-day free trial while the actual written contract contained only a 3-day cancellation window. I made repeated requests to Fortiva to close this account; Fortiva refused and subsequently charged it off and sold it to DNF Associates, LLC on or about 05/15/2026.

DNF ASSOCIATES' CONDUCT:

DNF Associates is attempting to collect \$1,693.14 on a debt it acquired with knowledge, or reason to know, that the underlying account was disputed and fraudulently originated. This conduct, combined with Fortiva's sale of a disputed account to a third-party collector without resolution, constitutes:

§ 17.46(b)(12): Representing that an agreement confers rights or remedies it does not have — specifically, attempting to collect a debt as valid and owed when its origination was the product of fraud

FINANCIAL HARM:

- Fortiva sold this disputed account to DNF Associates, LLC on or about 05/15/2026
- DNF Associates is actively pursuing collection of \$1,693.14
- This fraudulently originated account is actively damaging my Texas consumer credit report

LEGAL EXPOSURE:

Continued collection activity on a disputed, fraudulently originated account after notice exposes both Fortiva and DNF Associates to statutory damages and treble damages under § 17.50(b)(1) for knowing conduct. I respectfully request the Texas Attorney General investigate whether DNF Associates maintains a pattern of acquiring and collecting on disputed or fraudulently originated debts without independent verification.

RELIEF REQUESTED:

1. Investigation of DNF Associates' debt acquisition and collection practices in Texas
2. Investigation of Fortiva's practice of selling disputed accounts to third-party collectors
3. Cancellation of the \$1,693.14 balance fraudulently charged
4. Deletion of all related tradeline information from all three credit bureaus
5. Referral to the Texas Office of Consumer Credit Commissioner regarding DNF Associates' licensing status in Texas

I have submitted certified dispute letters to Fortiva, DNF Associates, and the three credit bureaus, and have filed simultaneous complaints with the CFPB and FTC.

FTC Identity Theft Report #: 202816785

Respectfully submitted,

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